

Amendment No. 1 to SB2471

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2471*

House Bill No. 2284

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-14-405, is amended by deleting subsection (d) and substituting:

(d) As used in this section, "enter" means:

(1) Intrusion of the entire body;

(2) When a person causes an unmanned aircraft to enter that portion of the airspace above the owner's land not regulated as navigable airspace by the federal aviation administration; or

(3) Intrusion by driving, parking, or otherwise operating a motorized vehicle or bicycle. As used in this subdivision (d)(3), "motorized vehicle or bicycle" includes, but is not limited to, all-terrain vehicles, utility task vehicles, side-by-sides, electric bicycles, motorcycles, and motorscooters.

SECTION 2. Tennessee Code Annotated, Section 39-14-405, is amended by deleting subsection (g) and substituting:

(g)

(1) Except as provided in subdivision (g)(2), criminal trespass is a Class C misdemeanor.

(2) Criminal trespass is a Class A misdemeanor if the violation involved the use or operation of a motorized vehicle or bicycle and is punishable only by a mandatory fine in the amount of two thousand five hundred dollars (\$2,500), and the sentence must include an order of restitution for all damages to the property

resulting from the violation. Upon a second or subsequent violation involving the use or operation of a motorized vehicle or bicycle, the motorized vehicle or bicycle is, upon conviction of the offense, subject to seizure and forfeiture as provided in title 40, chapter 33, part 1.

SECTION 3. Tennessee Code Annotated, Section 40-33-101(a), is amended by adding the following as a new subdivision:

(5) A violation of § 39-14-405 involving the use or operation of a motorized vehicle or bicycle.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts committed on or after that date.